

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS AND THE
STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2020-713 & 2020-714

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO AND THE CERTIFICATE TO
PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO OF MARGARET GODIN,
LICENSE NO. LPC 3838, CERTIFICATE NO. ACB 5870,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners and the State Board of Addiction Counselor
Examiners ("together, "Boards") and Margaret Godin ("Respondent"), as follows:

1. Respondent was licensed to practice as a professional counselor ("LPC")
in the State of Colorado on August 27, 2004, having been issued license number LPC
3838, and is currently so licensed. Respondent was certified to practice as an
addiction counselor ("CAC II") in the State of Colorado on October 30, 2002, having
been issued certificate number ACB 5870, and is currently so certified.
2. The Boards have jurisdiction over Respondent and the subject matter of
this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for
a settlement of all matters arising out of the complaint in case numbers 2020-713 and
2020-714 without the necessity of holding a formal hearing. This Order is a full and
final resolution of case numbers 2020-713 and 2020-714. This Order does not resolve
any other cases, complaints, or matters, known or unknown to the Boards or
Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Between February and June 2019, Respondent failed to report
potential child abuse.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Boards find that Respondent violated sections 12-245-224(1)(g)(I) and 19-3-304, C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline.

19-3-304. Persons required to report child abuse or neglect. (1) (a) Except as otherwise provided by section 19-3-307, section 25-1-122 (4) (d), C.R.S., and paragraph (b) of this subsection (1), any person specified in subsection (2) of this section who has reasonable cause to know or suspect that a child has been subjected to abuse or neglect or who has observed the child being subjected to circumstances or conditions that would reasonably result in abuse or neglect shall immediately upon receiving such information report or cause a report to be made of such fact to the Colorado Revised Statutes 2016 191 Uncertified Printout county department, the local law enforcement agency, or through the child abuse reporting hotline system as set forth in section 26-5-111, C.R.S.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Boards believe is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Boards hereby admonish Respondent for violations of sections 12-245-224(1)(g)(I) and 19-3-304, C.R.S. This Order is effective as a Letter of Admonition, set forth by section 12-20-404(4), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within six (6) months of the effective date of this Order, Respondent must successfully complete the online training for Mandatory Reporters of Child Abuse

and Neglect, offered by the Colorado Department of Human Services through the Office of Children, Youth & Families. Upon completion of the training, Respondent shall ensure that proof of completion is provided to the Boards. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or certification or to meet any other licensure or certification requirements.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

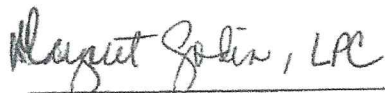
18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

19. This Order shall be admissible as evidence at any hearing held before the Boards.

20. This Order shall be a public record in the custody of the Boards.

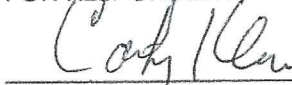
AGREED TO AND ACCEPTED BY:

RESPONDENT



MARGARET GODIN
LICENSE No. LPC 3838
CERTIFICATE No. ACB 5870

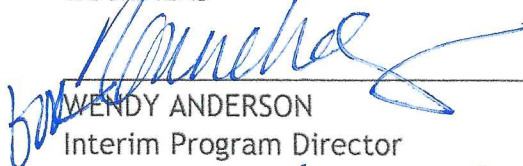
APPROVED AS TO FORM
FOR RESPONDENT



CATHY A. KLEIN, ESQ.

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS AND THE STATE
BOARD OF ADDICTION COUNSELOR
EXAMINERS


WENDY ANDERSON
Interim Program Director

Effective this 14 day of August,
2020.